Grant Smith Ellis Court Log

USA v. Matthew Farwell — October 26, 2026

Day 11 · Witness Testimony Summary

About this summary: A condensed reading aid drawn from the Day 11 court-day reconstruction, designed to preserve the principal testimony, material qualifications, and distinctions among direct, cross, redirect, and recross examination. It is not an official transcript; the full reconstruction remains the more complete record.

Reporting source: Grant Smith Ellis (@GrantSmithEllis)

Government Case

Reconstructed from Grant Smith Ellis's contemporaneous courtroom reporting

Pre-Court / Preliminary Matters

Before the jury entered, the defense asked Judge Denise J. Casper to warn jurors and spectators that Dr. Capo-Martinez's testimony would include graphic autopsy images. The judge agreed to give an instruction similar to one used earlier in the trial and advised spectators that overflow rooms were available if they wished to step out.

The parties then addressed several OCME-related exhibits. The defense identified a photograph of the container in which Birchmore's hyoid bone had been stored, an amended death-certificate attestation form, and an August 16, 2024 OCME meeting sign-in sheet. The government objected to the death-certificate materials on hearsay grounds and questioned the relevance of the meeting sign-in sheet absent foundation.

The government also raised proposed testimony from William Farwell. It said William would testify that he never discussed Matthew Farwell's relationship with Birchmore with Birchmore herself, but that Matthew had told William about other adult affairs and William had observed Matthew leave social events with another woman. The government argued that this was relevant to concealment of the Birchmore relationship. The defense objected under Rules 401 and 403. Judge Casper said she would give the issue further thought and indicated that any permitted testimony could be limited to William's own observations.

Diala Alkhalil, LMHC

Sandra Birchmore's longtime mental-health counselor

Testimony focus

Cross	Treatment history and fluctuating symptoms; the 2017 journal entry and earlier self-harm history; May 2020 Section 12 episode; Matthew Farwell's role in Sandra's life; pregnancy and paternity; differences from 2024 grand-jury testimony; January 2021 symptoms and Zoloft monitoring.
Redirect	Clinical context for earlier symptoms and journaling; repeated denials of self-harm ideation in treatment; May 2020 risk assessment; grief experiences; medication symptoms; Sandra's communication pattern in the final days.

Recross	Whether Alkhalil would have intervened if Sandra expressed suicidal intent; treatment and payment boundaries; what Sandra had not shared with her; close of Alkhalil's testimony.

Cross-examination

Joanne Daley resumed the defense cross by moving backward from the final month of Birchmore's life to the beginning of Alkhalil's treatment relationship with her. Alkhalil said she first treated Birchmore at about age 11. She recalled ADHD, anxiety, school and learning difficulties, and later explained that a prior bipolar diagnosis had been something she challenged rather than adopted. When treatment resumed in 2016 after the deaths of Birchmore's mother and grandmother, Alkhalil diagnosed adjustment disorder with mixed anxiety and depressed mood; she said the diagnosis changed over time as different symptoms became more prominent.

The defense then walked through Alkhalil's 2016 and 2017 notes. Alkhalil agreed that Birchmore had experienced poor sleep, difficulty concentrating, loss of interest, periods when she could not work or attend school, problems with hygiene, social withdrawal, panic attacks, grief, anxiety, fainting episodes, family conflict, financial stress, and episodes of tearfulness. At the same time, Alkhalil's 2016 assessment recorded no homicidal or suicidal ideation, no paranoia, and no dissociation at that point. She testified that symptoms waxed and waned and that Birchmore did not remain in one diagnostic state throughout treatment.

Daley then focused on 2017. Alkhalil had encouraged journaling but said she never saw Birchmore's journals during her life. The defense displayed Exhibit 56, a June 30–July 1, 2017 entry. Alkhalil agreed that the entry weighed reasons for and against self-harm, listed possible methods, and included reasons not to die, including school, work, her cats, and the possibility that someone might care. Alkhalil testified that she had not seen the entry in 2017 and did not learn of it until the government showed it to her after Birchmore's death.

The defense contrasted that private writing with Alkhalil's contemporaneous clinical record. Alkhalil testified that she continued seeing Birchmore after 2017 and recorded anxiety, depression, fainting associated with panic, tearfulness, and financial stress. Daley also explored payment issues and professional boundaries. Alkhalil acknowledged reminders about copays and said she sometimes banked the payments rather than stop seeing Birchmore; she described trying to prevent resentment over unpaid copays from affecting treatment.

The questioning moved to May 14, 2020, when Birchmore was taken for a Section 12 evaluation after her aunt called police. Alkhalil reviewed a lengthy text exchange to refresh her memory. She recalled Birchmore saying police had told her to call her therapist, which confused Alkhalil because she was not a crisis therapist and ordinarily expected a hospital crisis team to perform the emergency evaluation. Alkhalil said she spoke with Birchmore and then saw her by telehealth that day and again two days later.

The defense also elicited that Alkhalil had once recommended a day treatment program and that Birchmore declined but continued outpatient therapy. Alkhalil acknowledged a high-school episode in which Birchmore reported taking Tylenol and vomiting it up; Alkhalil considered that a historical self-harm risk factor. She also agreed that holidays and family isolation could be difficult for Birchmore, and that Birchmore sometimes came to sessions and cried.

Daley then returned to Matthew Farwell. Alkhalil initially said she would not describe Matt as a major source of support, except in connection with major events. The defense asked about her 2024 grand-jury testimony. After Alkhalil reviewed it, Daley read the earlier answer in which Alkhalil said Matt had

played a major role in supporting Birchmore during grief and problems with an ex, had been very supportive, and that Birchmore was protective of him and shut down challenges to the relationship. Alkhalil agreed that was what she had told the grand jury.

The defense next asked about pregnancy and paternity. Alkhalil agreed that Birchmore had spoken for some time about wanting a baby, had reported that Matt wanted one as well, and said they had been trying since January 2020. When Birchmore became pregnant in December 2020, she consistently told Alkhalil that Matt was the father even though, according to Alkhalil, Matt was denying paternity and saying he would not sign the birth certificate.

Daley then tested Alkhalil's memory about Birchmore's first sexual experience. At trial, Alkhalil had associated Birchmore's statement that she lost her virginity at 16 with Matt. The defense confronted her with the 2024 grand-jury testimony in which Alkhalil said Birchmore told her she had sex at 16 but did not tell her who it was with, how long she had known Matt, or when she met him. Alkhalil agreed that the grand-jury testimony accurately reflected what she recalled at the time, adding that the memory was fresher then but the stress and trauma were also greater.

The cross then returned to January 2021. Alkhalil agreed that Birchmore was grieving that her mother and grandmother would not be present for the baby's birth, but said that was not her biggest concern. She described poor sleep, social withdrawal, anxiety, a racing heart, a fainting episode, and frequent texting. Birchmore sometimes contacted her almost daily and would ask Alkhalil to call when she had a panic attack. Alkhalil did not remember the exact wording that Birchmore feared she might faint and not be found, but remembered Birchmore saying she felt something bad might happen in the apartment.

Daley asked about Alkhalil's professional qualifications. Alkhalil described herself as qualified within the scope of a 20-year practice but said she had told an FBI agent that she would not call herself a legal expert in self-harm and depression; her current specialty was OCD and anxiety.

The final portion of cross addressed Zoloft. Alkhalil said Birchmore began sertraline around January 21, 2021 through her OB-GYN and that both Alkhalil and the prescribing doctor had responsibility for monitoring symptoms. She had not spoken with the OB-GYN before Birchmore died because, she said, she had not seen or received a report requiring that intervention. Birchmore reported that the initial 50 mg dose was reduced to 25 mg and had reported jitteriness and panic symptoms. Alkhalil agreed that worsening depression or anxiety would be concerning, while saying sleep problems and irritability were not, by themselves, the most serious warning signs in her experience. She had not spoken with the prescribing doctor before Birchmore's death.

Redirect examination

On redirect, the government first returned to Alkhalil's statement that she was not an "expert." Alkhalil explained that when she was first told she might testify as an expert witness she did not understand the legal use of that term. She said she regarded herself as qualified within her scope of practice but had never before testified in that capacity.

The government then revisited Birchmore's long history of grief, anxiety, financial problems, and fluctuating symptoms. Alkhalil testified that she knew that history well and nevertheless contacted Massachusetts State Police after Birchmore's death to offer information.

Redirect also returned to the diagnosis that the source reported as "BPD." Alkhalil testified that she had challenged and never adopted that diagnosis. She described therapists as seeing patients much more frequently than psychiatrists ordinarily do, which was part of the basis for her familiarity with Birchmore over time.

The government next revisited the earlier testimony about Birchmore's deceased mother. Alkhalil testified that the late-January 2021 experience was not the first time Birchmore had described a visit or vision involving her mother; she recalled similar reports as early as 2019 and said such experiences can be common in grief.

The government then returned directly to Exhibit 56. Alkhalil testified that she had been seeing Birchmore weekly, sometimes twice weekly, around June and July 2017 and that she assessed self-harm during those sessions. According to Alkhalil, Birchmore denied self-harm ideation. Alkhalil distinguished a journal entry containing dark thoughts from a clinical self-harm note and said she could not speculate about Birchmore's purpose in writing it; she added that patients sometimes use journals to express thoughts they do not intend to act on.

The May 2020 Section 12 episode was revisited next. Alkhalil said she assessed Birchmore after the police and hospital encounter, and Birchmore denied self-harm ideation. Alkhalil understood Birchmore's release after several hours to mean the hospital did not see grounds to hold her. She testified that if she herself had concluded Birchmore was at risk, she would have called 911 or a doctor and sought hospitalization. In more than eight years of treating Birchmore, she had never done so.

The government also returned to the Zoloft questions. Alkhalil said Birchmore reported jitteriness after starting the medication, but did not report self-harm or increased depression. She testified that sleep difficulty had occurred throughout Birchmore's treatment and was not a new symptom after Zoloft; if it had suddenly appeared with the medication, she said, she would have contacted the prescribing doctor during the session.

Finally, the government asked about Birchmore's communication pattern. Alkhalil had testified that Birchmore sometimes texted about very minor concerns. Asked specifically whether Birchmore sent her a text on February 1, 2021, Alkhalil answered no. A follow-up formulation asking whether Birchmore had texted that she was going to kill herself drew a defense objection that was sustained.

Recross examination

On recross, the defense asked whether Alkhalil would have tried to stop Birchmore if Birchmore had said she was going to kill herself. Alkhalil answered that she would. The defense then returned to payment and treatment boundaries. Alkhalil agreed that therapists may refer a patient elsewhere if payment becomes impossible, but said she had not done that with Birchmore and continued to see her.

The defense established that Alkhalil learned of Birchmore's death on February 4 and closed the file the next day. After a sidebar, Daley asked again about Birchmore's presentations in treatment. Alkhalil agreed that Birchmore was sometimes crying and tearful, but said she was not suicidal. Daley then asked whether Alkhalil now knew Birchmore had not shared everything with her; Alkhalil answered yes. Her testimony concluded shortly after 11:04 a.m.

Court Proceedings

During the morning break, the government returned to the disclosure issue concerning William Farwell. It said the substance of his anticipated testimony about Matthew Farwell's adult affairs had been disclosed in a 2025 FBI 302 and again in a letter to the court after a recent meeting with William. The defense responded that its objection was not about late disclosure but about relevance and Rule 403. Judge Casper said she would give the issue further thought.

Dr. Capo-Martinez

Massachusetts Office of the Chief Medical Examiner

Testimony focus

Direct	OCME intake and case-processing procedure; February 5 autopsy; delayed biological-evidence collection; asphyxia and hanging mechanics; hyoid and neck findings; information available before the May 2021 ruling; later review and amended manner of death.
Cross	Scope of suspicious-death processing; contemporaneous documentation; possible postmortem explanations for the hyoid fracture; delayed evidence collection; 2024 review meeting; later mental-health information; basis for the amended classification.
Redirect	Experience with hyoid fractures in seated hangings; self-harm history; absence of DNA information before the original ruling; apartment-door information; chart-review determinations.
Recross	Timing of defense meetings and correction of a comparison example involving a partially suspended jail hanging.

Direct examination

The government began with OCME procedure. Capo-Martinez explained that a cause- and manner-of-death determination can be based on a full autopsy, an external examination, or a chart review, depending on the case. For manner of death, she said, the examiner considers more than the body: police and EMS reports, medical records, toxicology, expert reports, witness statements, and other relevant documentation can all matter.

The government asked who controls the content of police reports and witness statements. Capo-Martinez said those materials ordinarily come from law enforcement and that the OCME does not author them. She testified that an incomplete investigation can affect the medical examiner's work because the office depends on other agencies for information; if the OCME does not receive sufficient information, she said, it may not be able to ascertain the correct manner of death.

Capo-Martinez then described how the information supplied at intake affects body processing. If there is no suspicion of foul play, OCME staff may remove clothing, fingerprint and photograph the body before the assigned medical examiner begins. If a death is known or reported as suspicious, the body may instead remain in the bag and be handled in a way intended to minimize contamination until the examiner sees it. Law enforcement may also attend an autopsy, provide additional scene information, observe evidence collection, and take photographs.

Turning to Birchmore, Capo-Martinez testified that the body arrived on February 4, 2021 and she performed the autopsy on February 5. No medical examiner had been asked to attend the apartment. The Canton Police intake described Birchmore as seated and suspended from a door handle, referred to a scarf, stated that no suicide note was found, noted the pregnancy evidence, and said there was no foul play. Capo-Martinez testified that she reviewed and relied on that information for the initial workflow.

The government then showed the Massachusetts State Police preliminary report, which was admitted over a hearsay objection. It was labeled "Birchmore Suicide" and described a nylon strap around Birchmore's neck, an ultrasound at the apartment, and "multiple antidepressant medications" at the scene. The government showed Capo-Martinez the medication photograph. She identified one

antidepressant, sertraline; the other items discussed included prenatal vitamins, Zofran for nausea, prednisone, and nortriptyline for migraines.

Asked whether anyone told her before the autopsy to consider homicide, Capo-Martinez said no. She testified that if homicide or another suspicious circumstance had been raised, she would have asked why, asked whether there was something specific to examine, and preserved or collected evidence differently. She did not remember whether law enforcement attended Birchmore's autopsy.

The government then moved to the biological-evidence collection. Capo-Martinez testified that no sexual-assault or evidence kit was requested on February 5. Police asked her to return on February 26, twenty-one days later, to collect oral, vaginal, perianal, anal, underwear and related samples. By then the full autopsy had been performed, the body had been opened and reconstructed, washed, placed back in a body bag, and stored in a cooler. On February 12 she had also reopened the body to collect fetal and uterine tissue. Capo-Martinez said she had performed delayed kits before but warned that washing and handling can compromise evidence.

The government next developed the mechanics of asphyxia and hanging. Capo-Martinez testified that asphyxia can occur in homicide or suicide and described full and partial suspension. She said findings can overlap, but some injuries are less common in partial suspension. The amount of suspended body weight may vary, particularly when a person is seated or kneeling.

Questions then turned to the hyoid. Capo-Martinez testified that age matters because the hyoid ordinarily fuses over time; Birchmore's was not fused and was therefore more mobile and flexible. She agreed that fractures can occur in both full and partial hangings. Asked for an OCME example of a broken hyoid in a seated hanging involving a person under 30, she said she did not have one.

The government displayed autopsy and scene photographs. Capo-Martinez testified about petechiae and the ligature furrow, including abrasions above and below the furrow that she said could reflect movement of the ligature or body. She also discussed a vertical or linear mark under the lip that she had not specifically documented in the original report but, viewing the photograph at trial, regarded as looking like an abrasion. She continued to describe markings around the nose as changes associated with decomposition rather than trauma.

The government also showed video of Birchmore entering the apartment on February 1 with her hair in a bun and scene photographs showing bobby pins around the body. Capo-Martinez testified that she did not have that information before her examination. The ligature itself was then displayed in court.

The testimony moved to an abrasion on Birchmore's upper chest. Capo-Martinez described it as red-brown and said abrasions may result from scraping or pressure. Asked whether it could have resulted from blunt-force trauma, she said yes, but when asked what specifically caused this abrasion she said she was not sure. She testified that its red coloration favored an injury occurring before or around the time of death rather than well after death.

After lunch, direct resumed with the internal neck dissection. Capo-Martinez testified that she found a fracture of the right side of the hyoid bone and hemorrhage in the left sternothyroid muscle. She located the muscle hemorrhage below the voice box while the ligature was at or above it. She agreed that hemorrhage can indicate trauma. Birchmore's hyoid was non-fused.

The government showed photographs of the hyoid taken in October 2024 at the FBI's request. Capo-Martinez described the right side as displaced inward. She saw a darker area near the fracture and testified that it could be hemorrhage, but she could not confirm that from a photograph taken years later. The FBI also requested further imaging of the bone in 2024.

Capo-Martinez then testified that the rest of the examination was generally healthy except for gallstones and pregnancy. The fetus was intact, approximately three centimeters long and consistent with eight to ten weeks' gestation, with no signs of miscarriage. She testified that the fetus most likely died when Birchmore died.

The government asked when and why Capo-Martinez closed the case. She issued the autopsy report on May 6, 2021 after receiving toxicology, obtaining the requested scene photographs, and receiving information from Massachusetts State Police that there was nothing else to report. An email from John Fanning's office said the scene photographs would be sent and that there was nothing new to report while some forensic testing remained at the laboratory. Capo-Martinez testified that she reviewed that information before signing the report.

Her original cause of death was asphyxia by hanging and the manner was suicide. She testified that the conclusion relied on the Canton intake, the State Police preliminary report, information supplied by law enforcement, the autopsy, and the scene photographs that arrived shortly before she closed the case.

The government then asked, item by item, what she did not have before May 6. Capo-Martinez said she had no DNA information from the ligature or underwear and did not know the identity of any major DNA contributor. She had not been told about a necklace on Birchmore's body, final phone movement or lock times, the content of Birchmore's messages, apartment surveillance, visitors to the apartment on February 1, or a history of consensual choking. She said State Police had provided no written witness statements. No one had asked her before she issued the report to consider homicide.

Capo-Martinez testified that she had changed very few death certificates in approximately ten years and that substantive changes were not made lightly. She said new information later came to the OCME in Birchmore's case. The amended certificate lists cause of death as asphyxia and manner as undetermined. Asked who pressured her to make the change, Capo-Martinez said no one did.

Direct concluded after questions about the OCME's internal specialties. The government asked about the significance of consultation and outside information; several questions about staged scenes were excluded.

Cross-examination

Kimberly C. Stevens began cross with Capo-Martinez's education, fellowship, board certification, and experience. Capo-Martinez estimated that she had performed or reviewed approximately 3,000 to 5,000 cases. She testified that she does not work for either side in litigation and begins her analysis with an open mind.

Stevens then narrowed the earlier testimony about what would have changed if the death had been reported as suspicious. Capo-Martinez agreed that the autopsy itself would have been largely the same, including the layer-by-layer neck dissection. The difference would have been in processing and preservation: a suspicious body would ordinarily remain in the bag longer, clothing would not be removed before the examiner, and handling would be minimized to reduce contamination.

The defense established that Capo-Martinez did obtain the existing scene photographs before signing the May 6 report. Using the scene image, Stevens had her describe Birchmore as partially suspended, with parts of her body on the floor. Capo-Martinez agreed that the ligature was supporting Birchmore's head, neck and part of the torso. She also acknowledged that a locked door and the absence of drag marks, scuffs or signs of struggle are relevant data points, although she could not always say when she first learned each one.

Stevens emphasized the importance of contemporaneous autopsy documentation. Capo-Martinez agreed that photographs may not reproduce color or three-dimensional findings exactly as she saw them in person and that the report and bench notes are important when refreshing memory years later.

The defense then developed a possible postmortem explanation for the hyoid fracture. Birchmore had remained suspended for an extended period after death, and Capo-Martinez agreed that a non-fused hyoid in a person in her twenties is relatively mobile. When Stevens asked whether the position of the head and ligature could push the hyoid in a particular direction, Capo-Martinez said she could not say without knowing the precise relationship between the ligature and the bone.

Stevens then asked about hemorrhage. Capo-Martinez agreed that a fracture without hemorrhage could suggest a postmortem event. She acknowledged that the original autopsy report did not record the hyoid fracture and that her bench notes and report did not document hemorrhage at the fracture site, although she had documented a separate hemorrhage in the sternothyroid muscle. She agreed that accurate contemporaneous notes were important.

The defense revisited the February 26 evidence collection. Capo-Martinez corrected Stevens on the date and identified fingernail clippings and the various swabs. Asked whether she saw evidence of a violent assault “in that area,” she answered no.

Stevens also elicited that family members can sometimes be surprised when a loved one dies by suicide. The original death certificate was then admitted in redacted form, showing cause as asphyxia by hanging and manner as suicide.

Cross next moved to the August 2024 review. Stevens established that the meeting included FBI and DOJ personnel, State Police, outside expert Bill Smock, Chief Medical Examiner Mindy Hull, OCME counsel and others. Capo-Martinez said the meeting had been requested by people outside the OCME, that she had never attended a meeting of that type before, and that Smock communicated an opinion different from hers.

Stevens then explored what later mental-health information the government did and did not provide. Capo-Martinez said the government shared Birchmore’s journals and told her about a February 1 search concerning the color of a suicide ribbon. She could not recall whether she had been told about an earlier pill-ingestion episode. She said she had not been told about text messages concerning cutting; some further questions on those subjects drew hearsay objections.

Capo-Martinez nevertheless testified that after reviewing the expanded record and consulting others, her final classification remained undetermined. She agreed that fractured hyoid bones can occur in partially suspended hangings and can occur in people under 30. She also testified that she had initially believed, for reasons she did not fully explain in the reported exchange, that she could not consult before making the final determination; after consultation and further review, she changed her opinion.

Cross ended with additional questions about the 2024 materials, the ligature, and the timing of the defense team’s later meetings with Capo-Martinez.

Redirect examination

On redirect, the government first returned to the defense concession that hyoid fractures can occur in seated hangings. Capo-Martinez agreed that they can, but when asked whether she had ever personally seen a fractured hyoid in a seated hanging involving a person under 40, she answered that she could not recall one.

The government next returned to self-harm history. Capo-Martinez said she did not recall the cutting information discussed on cross and testified that Birchmore's body showed no new or old cutting injuries.

The government then returned to what Capo-Martinez actually possessed in May 2021. She testified that she had no DNA information at all before issuing the original ruling: nothing about DNA on the underwear and nothing about DNA on the ligature.

Redirect also revisited the apartment door. Capo-Martinez could not recall whether she knew on February 4 that the door had been locked. She testified that she had no information about who had a key and no information about whether a key was even required to lock the door.

The government asked whether medical examiners can determine cause and manner through chart review without physically examining a body. Capo-Martinez said yes, provided they have the relevant reports, photographs, medical records and other chart material. She could not recall whether she had ever seen a hyoid fracture from someone thrusting into a ligature.

Recross examination

On recross, Stevens established that the defense first met with Capo-Martinez in 2026, after the death certificate had already been amended. She then asked about an OCME example involving a partially suspended jail hanging that had been discussed as a comparison. Capo-Martinez corrected the premise that the decedent was under 30: she said that person was 42. Capo-Martinez was excused at approximately 3:41 p.m.

William "Billy" Farwell

Matthew Farwell's twin brother; former Stoughton police officer

Testimony focus

Direct	Immunity; William Farwell's own sexual relationship with Sandra Birchmore; Stoughton and military background; earlier interactions and 2018 Facebook messages; his knowledge of Matthew Farwell's relationship with Birchmore; unresolved reporting gap concerning the underage-contact question.

Direct examination

Assistant U.S. Attorney Brian Fogerty called William Farwell shortly after Capo-Martinez was excused. William identified Matthew Farwell as his fraternal twin brother and testified that he was 40 years old. He said he had worked for the Stoughton Police Department from 2017 until 2022.

Fogerty immediately asked about William's own sexual contact with Birchmore while he was a Stoughton officer. William said it began in 2018, when Birchmore was about 20 or 21. Grant's reporting records the next question asking whether William ever had sexual contact with Birchmore while she was underage, but no answer is captured before the government moved to the next question. William then admitted that he had sex with Birchmore while he was on duty.

Fogerty asked whether William was testifying under a grant of immunity. William answered yes, and Judge Casper gave the jury an immunity instruction. When testimony resumed, William said his understanding was that his statements could not be used against him unless he lied or failed to tell the truth. Asked why he wanted immunity, he answered that he had engaged in sexual relations while on duty as a police officer.

The government then moved through William's background. He grew up in Stoughton, attended Stoughton High School with Matthew, and had participated in the Police Explorers program as a youth. William testified that Matthew met Michelle at William's March 2007 wedding. He later attended Matthew's May 2013 wedding.

William testified that after high school he joined the military. As an adult, before becoming a Stoughton officer, he sometimes returned to the Explorers program in a limited volunteer role to discuss military opportunities. He said the role was limited because he had a family and a full-time military job. He joined Stoughton Police in September 2017; William worked patrol while Matthew was a detective.

Fogerty then asked William for his recollection of Birchmore before she turned 18. William testified that he did not recall interacting with her before she was 18. The government published an already-admitted Facebook Messenger exchange dated June 26, 2018. The first message was from Birchmore asking whether William needed anything while he was working a paid construction detail. William testified that the two were not Facebook friends before that message.

The messages continued about an hour later. Birchmore asked William for a favor and referred to his military service. She asked him to look at her DD-214 and determine whether the discharge chapter would permit her to reenlist, adding in the message that she had shown it to him "back in the spring." William explained what a DD-214 was and how the reenlistment code could affect whether someone could return to the Army.

Fogerty asked what William understood Birchmore to be asking. William said she wanted to reenlist. When the government asked whether he remembered discussing the same subject with her two years earlier, William said he did not. He testified that he had been in the military for just under 23 years and had discussed military matters with hundreds of people.

The government continued through the message thread. William confirmed a message saying Birchmore might need to wait at least three years and his response that he had recruiting contacts who could sometimes help. Birchmore said she would send the document after work; William testified that she then sent what he believed was her DD-214.

Fogerty then fixed William's knowledge in time. Asked what he knew in July 2018 about Matthew Farwell having sex with Birchmore, William answered that he had no knowledge of it.

The government's next question was whether William's relationship with Birchmore changed shortly after the two connected. William said they began a consensual sexual relationship. Asked whether Birchmore was an adult, he answered yes. He testified that their sexual encounters occurred either in one of their vehicles or at the house where Birchmore lived with her aunt.

Court adjourned immediately after that answer. William Farwell remained in direct examination, and the government had not yet reached the other affair-related testimony discussed with the court earlier in the day.

Editorial note

This Witness Summary is a reading-oriented reconstruction of Grant Smith Ellis's contemporaneous October 26, 2026 courtroom reporting. It is not an official court transcript. Routine foundation, repetition, and non-substantive procedure may be compressed for readability, but material sequence, qualifications, competing testimony, and uncertainty are preserved rather than silently resolved.

One material reporting gap affects William Farwell's testimony: Grant's reporting records the government asking whether William ever had sexual contact with Birchmore while she was underage, but no answer is captured before the next reported question. This report does not infer an answer.

Grant's contemporaneous commentary and characterizations are not converted into evidentiary findings. Exhibit descriptions are retained as reporting where necessary to understand the testimony; the archive does not reproduce or append the trial exhibits for this date. The retained courtroom reporting ends during William Farwell's unfinished direct examination at approximately 4:01 p.m.